

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS**

Index No.: 720095/2020

-----X
JEFFREY GRIMES,

Plaintiff,

**(*corrected*)
COMPLAINT**

-against-

THE CITY OF NEW YORK,
OFFICER REO (officer with the NYPD first name unknown)
OFFICER LEWIS (officer with the NYPD first name
unknown
JOHN DOE OFFICER 1 and
JOHN DOE OFFICER 2

Defendants.
-----X

Plaintiff **JEFFREY GRIMES** ("Mr. Grimes"), by his attorneys Turturro Law, P.C. as for his Amended Complaint against the defendants, respectfully alleges, upon information and belief, as follows:

PARTIES

1. At all times herein mentioned, Plaintiff **JEFFREY GRIMES** was, and still is, a resident of the County of Queens City and State of New York.

2. At all times herein mentioned, Defendant **THE CITY OF NEW YORK** was, and still is, a municipal corporation duly organized and existing by virtue of the laws of the State of New York.

3. Upon information and belief, at all times mentioned, Defendants **OFFICER REO¹, OFFICER LEWIS², JOHN DOE OFFICER 1³ and JOHN DOE OFFICER 2⁴** were, and are,

¹ At the present time, the full identity of this officer is unknown to Plaintiff. Mr. Grimes will amend the complaint at such time he is aware of the officer's identity.

² At the present time, the full identity of this officer is unknown to Plaintiff. Mr. Grimes will amend the complaint at such time he is aware of the officer's identity.

police officers, detectives and/or sergeants of the Defendant **THE CITY OF NEW YORK**, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant **THE CITY OF NEW YORK**.

PROCEDURAL HISTORY

4. The Plaintiff served a notice of claim ("First Notice of Claim") which was duly received and processed on November 14, 2019

5. The Plaintiff further complied with the request of the municipal Defendant for an oral examination pursuant to Section 50h of the General Municipal Law and, a 50h hearing was held on February 21, 2020

6. On or about August 31, 2019, the Plaintiff commenced a special proceeding via Order to Show Cause seeking leave to file a late (Second) Notice of Claim (to add additional state claims against the Defendants not referenced in the First Notice of Claim), which was accompanied by an Affirmation in Support of Petitioner's Order to Show Cause.

7. The aforementioned Order to Show Cause to file a late (second) notice of claim was opposed by defendant City of New York and, ultimately denied by the Court via a Decision and Order entered on October 10, 2020.

8. In any event, at least thirty (30) days have elapsed since the service of the First Notice of Claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the causes of action herein allegedly accrued. As such, this lawsuit is both ripe and timely.

³ At the present time, the identity of this officer is unknown to Plaintiff. Mr. Grimes will amend the complaint at such time he is aware of the officer's identity.

⁴ At the present time, the identity of this officer is unknown to Plaintiff. Mr. Grimes will amend the complaint at such time he is aware of the officer's identity.

FACTS

9. On April 15, 2015, at approximately 12:30 pm, Plaintiff was lawfully sitting on the front porch his property located at 189-22 117 Road St. Albans, New York. The property had a gate before a pathway to the house and porch. At this point in the day, Mr. Grimes was lawfully smoking a cigarette and relaxing on the porch while having a conversation with his friend, Michael Dove. A book-bag was sitting next to Mr. Grimes on the porch.

10. At or around 1:00 pm, four unmarked police vehicles pulled up to the property, and Defendant-Officers, in plain clothes, exited their vehicles with weapons drawn. At this point, Mr. Grimes, fearing for his life and unaware that the armed individuals were officers, turned and went into the entrance of the front door of the property to duck into it for cover. With his back turned to the front door of the property, Mr. Grimes then proceeded to go up the stairs (which were directly in front of him upon entering the property's front door), and dropped his book-bag in the property's interior hallway.

11. As Mr. Grimes was scrambling up the staircase to the second floor, Defendant-Officers ran through the gate and into the property, grabbed Mr. Grimes and two of the Defendant-Officers started punching him while another of the Defendant-Officers was holding Mr. Grimes' face against the staircase. The beating was very severe, intense and resulted in multiple bruises to Mr. Grime's head and a blackening of his eye.

12. Thereafter, Mr. Grimes was handcuffed, arrested while one of the Defendant-Officers opened and perused through his book-bag; while looking into the bag, one officer found a weapon and 1/16 ounce of marijuana.

13. Mr. Grimes was then subsequently brought to the 113 Precinct, and not long after, was treated there for his head injuries. Plaintiff, having passed out from the injury, was given a CAT scan.

14. Thereafter, with cooperation of the Defendant-Officers, Mr. Grimes was eventually indicted and charged with illegal possession of a firearm, and criminal possession of marijuana.

15. During the ensuing prosecution, Mr. Grimes' public defender filed a request to hold a suppression hearing since he maintained that the stop and frisk and search and seizure of Mr. Grimes and his book-bag were all performed in violation of Mr. Grimes' constitutional rights.

16. Next, on or about January of 2017, Mr. Grimes received an adverse decision at his suppression hearing, which the Defendant-Officers testified at (despite having knowledge and evidence of unconstitutionally obtained evidence from a warrantless search and Mr. Grimes innocence). As a result of the same, with the prospect of facing a substantial prison sentence on the felony charges, Mr. Grimes, while maintaining his innocence and preserving his appellate rights, entered into a plea agreement on February 14, 2017.

17. Specifically, on February 14, 2017, Mr. Grimes plead guilty to criminal possession of a weapon in the second degree, resisting arrest, and criminal possession of marijuana in the fifth degree and was sentenced to three and a half years of imprisonment (based on the felony criminal possession of a weapon in the second degree charge), followed by two and a half years of parole. Again, the plea was expressly conditioned on Mr. Grimes right to appeal the conviction by plea (as he maintained his innocence).

18. Mr. Grimes was thereafter remanded to Rikers Island's floating barge for seven days, and then Rikers Island Otis Bantum Correctional Center ("OBCC") for eleven days before being transferred upstate. At Rikers OBCC, Mr Grimes was attacked by multiple cellmates, and offered no protection from the officers overseeing the prison.

19. Lastly, on or about August 19, 2019, after serving nearly three (3) years in jail, Mr. Grimes was informed his appellate decision concluded in his favor, and Mr. Grimes was finally released from confinement on August 29, 2020.

APPELLATE DECISION

20. In "vacating the conviction of criminal possession of a weapon in the second degree, vacating the sentence imposed thereon, and dismissing that count of the indictment", the Appellate Division, Second Department held that the search of Mr. Grimes' bag was a

warrantless search not falling into any admissibility exceptions, as such, all evidence procured by the Doe Officer's including the firearm and marijuana, were inadmissible against Mr. Grimes. *People v Grimes*, 175 AD3d 712 (2d Dep't 2019).

21. Specifically, the Court held that "the defendant's conviction of criminal possession of a weapon in the second degree, premised upon the recovery of the firearm, must be vacated and that count of the indictment must be dismissed." *Id.*

AS AND FOR A FIRST CAUSE OF ACTION

22. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "22" with full force and effect as though set forth at length herein.

23. As averred above, from on or about February 14, 2017 to August 29, 2020, Mr. Grimes was confined for nearly three years in prison stemming from his April 15, 2015 unlawful stop, frisk, search, and warrantless arrest at his home in Queens as well as the ensuing charges.

24. As averred above, the defendants, jointly and severally in their capacity as police officers, detectives and sergeants, without any warrant or any other legal process and without any legal right, wrongfully and unlawfully arrested Plaintiff **JEFFREY GRIMES**, restrained him and interfered with his liberty and took him into custody in Queens County and thereafter charged him with various crimes as a result of an illegal search and seizure of a firearm and 1/16th ounce of marijuana.

25. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and at all times Plaintiff was aware of his confinement.

26. Accordingly, Defendants are liable to Plaintiff for falsely arrest and false imprisonment under New York law.

AS AND FOR A SECOND CAUSE OF ACTION

27. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "26" with full force and effect as though set forth at length herein.

28. That on or about April 15, 2015, at approximately 1:00 pm in the vicinity of 189-22 117 Road St. Albans, New York, the Defendants, jointly and severally, in their capacity as police officers for defendant City of New York, placed Plaintiff **JEFFREY GRIMES** in imminent fear of a harmful or offensive physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and/or other objects which they used to physically seize, strike and/or restrain the plaintiff.

29. All of the above actions placed the Plaintiff in imminent fear of physical contact and at no time did the Plaintiff consent to the unlawful actions of the Defendants, nor was it privileged by law.

30. Accordingly, Defendants are liable to Plaintiff on claims for assault and/or excessive force under New York law.

AS AND FOR A THIRD CAUSE OF ACTION

31. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "30" with full force and effect as though set forth at length herein.

32. That on or about April 15, 2015, at approximately 1:00pm, Plaintiff was arrested and, from that time until the end of the criminal prosecution and confinement on or about August 29, 2020, Defendants and/or their agents deliberately and maliciously prosecuted Plaintiff, an innocent man, without any probable cause whatsoever, by filing or causing a criminal complaint to be filed in the Criminal Court of the City of New York, Queens County, for the purpose of falsely accusing the plaintiff of violations of the criminal laws of the State of New York.

33. The Defendants failed to take reasonable steps to stop the prosecution of the Plaintiff and, instead, maliciously and deliberately provided false and/or incomplete information to the District Attorney's office to induce prosecution of the Plaintiff. In fact, Plaintiff's prosecution and conviction by plea was solely based on the unconstitutional warrantless search and seizure of a firearm and marijuana, as set forth in the Second Department's appellate decision.

34. The commencement of these criminal proceedings was malicious, began in malice and without probable cause, so that the proceedings could succeed by the Defendants.

35. Said Prosecution was ultimately terminated in Plaintiff's favor on or about August 19, 2019 when the Appellate Division, Second Department overturned Plaintiff's Criminal Conviction (though Plaintiff remained confined in custody until August 29, 2020).

36. As a result of the malicious prosecution, Plaintiff was deprived of his liberty and suffered humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution, all while the Plaintiff made multiple court appearances to defend his liberty as a result of the unjust prosecution and, he spent nearly three (3) years incarcerated based on the meritless frivolous claims charged against him.

37. Accordingly, Defendants are liable to Plaintiff for maliciously prosecuting him under New York law.

AS AND FOR A FOURTH CAUSE OF ACTION

38. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "37" with full force and effect as though set forth at length herein.

39. Defendant-Officers were at all times relevant, duly appointed and acting officers of the New York City Police Department.

40. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies, customs and usage of the State of New York and/or City of New York.

41. Plaintiff **JEFFREY GRIMES** brings this cause of action pursuant to 42 United States Code, Section 1983, 1984, 1985, 1986, and 1988.

42. That on or about April 15, 2015, at approximately 1:00 pm Defendant-Officers, jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff **JEFFREY GRIMES** in an excessive manner about his person, causing him physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff, seize or touch the Plaintiff. The Plaintiff did not consent to this illegal touching nor was this touching privileged by law.

43. That on or about April 15, 2015, at approximately 1:00 pm, Defendant-Officers in the vicinity of Plaintiff's home, jointly and severally, did place Plaintiff **JEFFREY GRIMES** in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and/or other objects which they used to physically seize, strike and/or restrain the Plaintiff. All of the above actions placed the Plaintiff in imminent fear of physical contact and, at no time did the Plaintiff consent to the unlawful actions of the Defendants.

44. That, on or about April 15, 2015 at approximately 1:00pm, Defendant-Officers in the vicinity of Plaintiff's home, jointly and severally, without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully searched and seized him and his belongings, arrested the Plaintiff, restrained him and interfered with his liberty and then took him into custody, thereafter charged him with the crimes set forth in the aforementioned Indictment. The Defendants intentionally confined the Plaintiff without his consent and, the confinement was not

otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

45. That, on or about April 15, 2015, at approximately 1:00pm, Plaintiff was arrested and, from that time until the end of the criminal prosecution and confinement on August 29, 2020, Defendants, while effectuating the seizure of the Plaintiff **JEFFREY GRIMES**, did search, seize, assault and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested and maliciously prosecuted without the Defendants possessing probable cause to do so and without a reasonable suspicion of probable cause. At arraignment, the presiding judge released Mr. Grimes on his own recognizance and, Claimant maintained his innocence throughout the criminal prosecution that was litigated for nearly two years; however, prior to trial, Claimant accepted a guilty plea to the charge while maintaining his appellate rights. Said conviction by plea, which was reversed on appeal, had a minimum prison sentence of three plus years with post release supervision for two years.

46. The above actions of the Defendants resulted in the Plaintiff being deprived of the following rights under the United States Constitution Section 1983, 1984, 1985, 1986 and 1988:

- a. Freedom from assault to his person;
- b. Freedom from illegal search and seizure;
- c. Freedom from false arrest; and,
- e. Freedom from malicious prosecution

47. The Defendants subjected Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights, or with deliberate indifference to those rights afforded individuals by the Fourth and Fourteenth Amendments to the United States Constitution.

48. The direct and proximate results of the Defendants' acts are that the plaintiff was forced to endure pain and suffering, all to his detriment; and, he has suffered severe and permanent injuries of a psychological nature.

AS AND FOR A FIFTH CAUSE OF ACTION

49. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "48" with full force and effect as though set forth at length herein.

50. Defendant **THE CITY OF NEW YORK** has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure, especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only make an arrest based on probable cause.

51. Defendant **THE CITY OF NEW YORK** was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest or search warrant, are not to arrest individuals such as the Plaintiff here where probable cause is lacking.

52. **THE CITY OF NEW YORK** is negligent due to its failure to implement such a policy with its Police Department or actively enforce the law that, probable cause must be present before an individual such as Plaintiff herein can be arrested.

53. The foregoing acts, omissions and systemic failures are customs and policies of **THE CITY OF NEW YORK**, which caused those police officers to falsely arrest, maliciously prosecute, illegally seize and search the Plaintiff, commit an assault/battery to his person under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

AS AND FOR A SIXTH CAUSE OF ACTION

54. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "53" as if set forth at length herein.

55. Defendant **THE CITY OF NEW YORK** was negligent in that, prior to and at the time of the acts complained of herein, due to the prior history of the Police Officer, it knew or should have known of the bad disposition and/or reputation of said Defendants, or had knowledge

of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and/or reputation of the fact these officers were not suitable to be hired and employed by **THE CITY OF NEW YORK** and, that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals.

AS AND FOR A SEVENTH CAUSE OF ACTION

56. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "55" as if set forth at length herein.

57. Defendants **THE CITY OF NEW YORK** was negligent in that, their police officers (1) failed to act as reasonably prudent police officers under the circumstances and (2) failed to act consistent with the rules and regulations previously promulgated and in effect on the dates of the incidents described herein for the conduct of police officers.

AS AND FOR A EIGHTH CAUSE OF ACTION

58. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "57" as if set forth at length herein.

59. Upon information and belief, Defendants had actual knowledge of the wrongs committed against Plaintiff yet each conspired with the other to violate the civil rights of Plaintiff in contravention of 42 United States Code, Section 1985.

AS AND FOR A NINTH CAUSE OF ACTION

60. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "59" as if set forth at length herein.

61. Upon information and belief, Defendants had the power to prevent or aid in preventing the commission of the aforementioned wrongful acts but neglected or refused to do so derogation of 42 United States Code, Section 1986.

WHEREFORE, Plaintiff demands judgment against the Defendants, jointly and severally, together with the costs and disbursements of this action in an amount that exceeds the jurisdictional limit of all lower courts, together with punitive damages, attorney's fees and costs

for bringing this case.

Dated: October 28, 2020
Brooklyn, NY

TURTURRO LAW, P.C.

By: /s/ Natraj S. Bhushan, Esq. .
Natraj S. Bhushan, Esquire
1602 McDonald Avenue
Brooklyn , NY 10016
Tel.: 718-384-2323
Email: Natraj@turturrolawpe.com
Attorneys for Plaintiff

To: Corporation Counsel
100 Church Street,
New York, N.Y 10007